



CHAPTER 47.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[18th April 1946.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of two million nine hundred and fifty thousand, exclusive of the numbers actually serving in India on the Indian establishment :

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of seven hundred and sixty thousand, exclusive of the numbers serving as aforesaid :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this

realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-six on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1946.

Army Act
and Air
Force Act to
be in force
for specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and forty-six, to the thirtieth day of April, nineteen hundred and forty-seven, both inclusive ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and forty-six, to the thirty-first day of July, nineteen hundred and forty-seven, both inclusive.

22 & 23 Geo. 5. 5. c. 22. (2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-six.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(4) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

AMENDMENTS OF ARMY AND AIR FORCE ACTS.

3. In subsection (1) of section eighty-four of the Army Act (which provides for the re-engagement of soldiers after nine years' service for such further period of army service as will make up a total continuous period of twenty-one years' service), and in section eighty-five of that Act (which provides for the continuance in service of a soldier who has completed twenty-one years' service) for the words "twenty-one years' service", in both places where those words occur, there shall be substituted the words "twenty-two years' service".

Amendment
of ss. 84 and
85 of the Army
Act.

4.—(1) In subsection (1) of section eighty-four of the Air Force Act (which provides for the re-engagement of airmen after eight years' service for such further period of air force service as will make up a total continuous period of twenty-four years' service or for any shorter period whether or not including a term of service in the reserve) for the word "eight" there shall be substituted the word "four"; and at the end of that subsection there shall be added the words—

Amendment
of s. 84 of Air
Force Act.

" or

(c) for a further period of air-force service ending on the date on which he attains the age of fifty-five years or any lower age".

(2) At the end of subsection (2) of the said section (which relates to the forfeiture of service during re-engagement) there shall be added the words " but nothing in this subsection shall be construed as requiring a person who has been re-engaged for a period ending on the date on which he attains a specified age to serve for any period after that date."